

PLD 2009 SC 879: SINDH HIGH COURT BAR ASSOCIATION V. FEDERATION OF PAKISTAN

GOVERNMENT OF PAKISTAN • SUPREME COURT OF PAKISTAN • FEDERAL

Document ID: sc_judgment_pld_2009_sc_879_pco_judges	Enactment Date: 2009-07-31
Status: IN_FORCE	Official Source: https://www.supremecourt.gov.pk/judgments/sc_judgment_pld_2009_sc_879_pco_judges
Subject Category: case_law;supreme_court;constitutional;judiciary;pco;emergency_unconstitutional	Version: reported-judgment-pld

PREAMBLE: Landmark Judgment of the Supreme Court of Pakistan: Declared the Emergency of 3rd November 2007 and PCO unconstitutional, burying the Doctrine of Necessity forever.

Paragraph 1: Ratio Decidendi and Legal Principle

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Paragraph 2: Binding Precedent under Article 189

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Under Article 189 of the Constitution, any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Pakistan.